

9	Scott vs. Innovative Pain Treatment Solutions, LLC	<u>Motion to Dismiss Stakeholder</u> (Case Management Conference) 1. Motion to Dismiss The court CONTINUES Plaintiff KYLE SCOTT's motion to dismiss stakeholder to July 31, 2026, at 9:30 am in Department W08. Plaintiff filed this interpleader action and now moves for an order: (1) dismissing Plaintiff as stakeholder, (2) awarding \$3,174.70 in costs and \$8,875.00 in attorney's fees, and (3) permitting deposit of the remaining interpleaded funds of \$14,818.22 for Defendant BAHYA SIGAFOES and \$3,728.80 for Defendant CHERRY ANTOINE with the court. After filing the motion on 3/23/26, Plaintiff named F & M RADIOLOGY MEDICAL CENTER ("F&M") as Doe 2 on 4/16/26. A Proof of Service re Summons and Complaint was recently filed as to F&M, showing service of the summons and complaint and CMC notice on 4/22/26. (ROA 131.) As such, F&M's time to respond has not yet expired. Moreover, the proof of service does not show that F&M was served with the instant motion. As F&M may claim an interest in the interpleaded funds, the court finds additional notice is required before it will rule on the instant motion. Plaintiff SHALL immediately serve F & M Radiology Medical Center with the moving papers, if it has not already done so, and give notice of the continued hearing, including to F&M. Plaintiff shall file proof of service no later than nine (9) court days before the continued hearing date. Again, Plaintiff to give notice.

		2. CMC The court also CONTINUES the Case Management Conference to July 31, 2026, at 9:30 am in Dept W8, to be heard with the pending law and motion matter scheduled at that time. Plaintiff to give notice.
10	Chaganti vs. Red Tail Residential LLC	<u>Motion to Dismiss/Stay Action</u> The court DENIES without prejudice the motion by specially appearing Defendants RED TAIL RESIDENTIAL, LLC and LINDSY HARVEY to dismiss or stay action under the doctrine of <i>forum non conveniens</i>. Preliminarily, the court notes that the motion purports to be “made pursuant to Code of Civil Procedure §583.410, the Court’s inherent authority to dismiss as codified in Code of Civil Procedure §583.150, California Rules of Court, rule 3.1342, and California Rule of Professional Conduct 1.3(b).” (Not. of Mot. at p. 1, lines 26-28.) None of these cited authorities appear to be applicable here, as they each concern the issue of undue delay or diligence. Nonetheless, as the moving points and authorities deal with the issue and authorities concerning motions to dismiss or stay, the court analyzes the motion as being for such. (See Mov. Pts. & Auth. at p. 3, lines 17 to p. 4, line 7 [citing Code Civ. Proc., §§ 418.10(a), (e), 410.30(a), 396b].) <i>Mandatory Forum Selection Clause?</i> While not explicit, Defendants appear to argue that the parties entered into a mandatory forum selection clause. Defendants argue that Plaintiff’s claims arise from a residential lease dispute between them, which states: “Should either Party file a lawsuit arising out of this Lease Contract said lawsuit shall be exclusively filed and heard in state court located in the county where the apartment community is located. This Lease Contract shall be